

KABC010059102023



IN THE COURT OF THE LIX ADDL.CITY CIVIL & SESSIONS  
JUDGE, BANGALORE CITY  
(CCH-60)

Dated this the 25<sup>th</sup> day of February, 2025.

PRESENT :

**SRI. SOMASHEKAR A.**, B.A.L., LL.M.,  
LIX ADDL.CITY CIVIL & SESSIONS JUDGE,  
BANGALORE CITY.

Ex.No.619/2023

**Decree Holders/ :** 1) **Mr.D.Venkataramana**,  
S/o. Sri.D.Nagaiah,  
Aged about 61 years.

2) **Smt.Sailaja**,  
W/o. Sri.D.Venkataramana,  
Aged about 53 years.

(Both are r/at Plot No.279,  
Vijayanagar Employees Society  
-Colony, (Engineers Layout),  
Vedantapuram village,  
Behind Nidhi Cafe, Tirupathi Rural,  
AnDHRa Pradesh-517507)

(By Sri.Chennakeshavulu, Adv.)

**V/s.**

**Judgment Debtor :** **Mr.Balaji Pattabhiram Singh**,  
S/o. Mini Balaji Singh,  
Major in age, r/at Flat No.1032,  
Sobha Garrison Apartments,  
Nagasandra village,

Yeshwanthapura Hobli,  
Bengaluru-560 073.

(By Sri.Syed Jaffer Mohiyuddin, Adv.)

**ORDERS ON I.A.NO.VI**

The Judgment Debtor has filed this application under section 75(b) and (g) R/w under order XXVI Rule 9 and 10(b) of CPC to appoint Court Commissioner, to examine, collect and to safely deliver the articles and furniture belonging to him.

2. In support of the application, the Judgment Debtor filed his affidavit, wherein, he has stated that he was a tenant under DHR's in schedule premises. DHRs, have filed suit against him seeking the vacant possession of the premises and for recovery for rent. The said suit is decreed. By virtue of the said decree DHR filed the execution petition, wherein, order has been passed to deliver the vacant possession and accordingly, the bailiff of this court had been to premises and deliver the possession of the property. DHR has illegally kept his belongings in the premises of the property, he is in serious apprehension that expensive furniture and articles belongs to him might have caused damage beyond repair and several articles are have already missed. Therefore, it is necessary to appoint Court Commissioner for examination and inspection of the articles belongs to him. Hence, this application.

3. On the other hand, the DHR has filed objection to the application, contending that application filed by the JDR is not maintainable. He specifically contended that in this execution petition Court has issued delivery warrant and accordingly, bailiff has executed the warrant and handed over an inventory of old and used items of JDR along with the list. Since, then filing of the report, the JDR for one or reason as sought time to collect the inventory but has not come forward to claim the same and even he has not seen the inventory. But, he is making imaginary complaint against him, hence he prayed to dismiss the application.

4. Heard, perused the materials and record, following points that would arise for my determination.

**1) Whether the JDR has made out sufficient grounds to appoint Court Commissioner to examine and collect the articles and to safely deliver the same which are kept in the schedule premises ?**

**2) What order?**

5. My answer to the above points are :-

Point No.1 : **In the Negative.**

Point No.2 : As per final order for the following:-

### **REASONS**

6. **Point No.1:-** The JDR has invoked the provisions of section 75 of CPC and under order 26 Rule 9 of CPC to appoint

Court Commissioner to examine, collect and safely deliver the articles and furniture belonging to him.

7. No doubt, the power to order convictions vest with the Court under the above said provisions subject to conditions and limitations as may be prescribed the Court may issue a commission. To decide the present application on hand, it is necessary to say about the background of this case in brief.

8. As could be seen from the records it appears that, this Execution petition arises out of the Judgment and decree passed by this court in O.S.No.978/2022, dated.25.11.2022. Admittedly the said Judgment and decree passed by this court has not been challenged by the Judgment Debtor before the Appellate Court, therefore, the said decree is binding on him.

9. The order sheet of this case it appears notice has been caused to JDR, thereafter application under section 151 of CPC is filed by the DHR, for issuance of delivery warrant in respect of the suit property by breaking open the lock. Accordingly, the said application is allowed and delivery warrant has been issued. After noticing the said order, JDR appeared through his counsel and filed application under order 9 Rule 7 and under order 21 Rule 26 of CPC. On the very same day he seek time for a period for 15 days to

take away his belongings which are kept in the schedule premises. Accordingly, this Court has allowed the JDR and directed the DHR to keep all the belongings of JDR as per the inventory under protection. Despite of granting time the JDR has not removed or taken away his belongings from schedule premises and as such DHR has filed application under section 151 of CPC to auction the inventories mention in the list.

10. The order sheet further reveals that, on 10.11.2023 the DHR has changed his counsel, thereafter through NOC vakalath one Sir.GM, advocate appeared for JDR and thereafter matter is referred for Lok-Adalath. Despite of which the JDR has not obeyed the directions of this Court, therefore, again on 23.01.2024 JDR present before the Court and prays one month time to remove her belongings kept in the from the schedule premises. Inspite of which the JDR has not performed the undertaken given before the Court.

11. Further on 27.06.2024 the JDR present before the Court and submitted that he will take away all the inventory from the premises within one week. This court has consider his request and granted time and matter has been adjourned for a period of 3 months, again the JDR has changed his counsel on record and he appeared through his new counsel. On 23.09.2024 the JDR has filed

present interim application to appoint Court Commissioner, to examine, collect and safely deliver the articles and furniture belonging to him.

12. From the above proceedings of this case, it prima-facie appears the JDR is a tenant under DHR's, who have filed suit against him for ejectment and recovery of Arrears of Rent the said suit was decreed on 25.11.2022 and wherein JDR is directed to vacate the schedule property and hand over the vacant possession. Further he directed to pay Arrears of Rent to the tune of Rs.2,51,790/- to the plaintiff within 3 months and future rent at the rate of Rs.22,890/- per month from February-2020 till the date of actual handing over the possession. In spite of the said decree the JDR has not vacated the premises nor paid the rent and as such the present execution petition filed by the DHR.

13. It is worth to note to here that the JDR has appeared though his counsel and at the first instance he has undertaken to vacate and handover the vacant possession and later he has locked the premises. Therefore, delivery warrant has been issued, accordingly court bailiff had executed the warrant and delivery the vacant possession of the petition premises to the DHR and he also

submitted inventory list of belongings of JDR which were kept in the premises.

14. It is unfortunate to say that, JDR though appeared before the Court and under taken to take away the inventories from the premises and accordingly he has taken several adjournments and made false promise not only to the DHR but also to the Court. Thus, it appears the JDr is in the habit of changing his counsel on record and seeking unnecessary adjournments only with an intention to protract the execution proceedings. This kind of attitude of the JDR cannot be entertain at any stretch of imagination.

15. At the cost of reputation, I would like to say that the JDR is taken the Court has granted and as keep on giving undertaken before the Court and changing his counsel often and thereby obstructed the Court proceedings and ultimately filed the present application with a sole intention to delay the process of law. Looking from any angle the JDR is not entitle for any kind of relief from the hands of this Court much less the relief claimed under present application. With these reasons I answer point No.1 in the Negative.

16. **Point NO.2:-** For the foregoing reasons, I proceed to pass the following:-

**ORDER**

I.A.No.6 filed by the Judgment Debtor under section 75(b) and (g) R/w under order XXVI Rule 9 and 10(b) of CPC is rejected with cost of Rs.5,000/-.

Judgment Debtor is hereby directed forthwith to remove his belongings (as per inventory list) which were lying in the schedule premises.

*[Dictated to the Typist on computer, corrected, signed and then pronounced by me, in the Open Court on this the 25<sup>th</sup> day of February, 2025.)*

**[Somashekar A.]**

LIX Addl. City Civil & Sessions Judge.  
BANGALORE.

Order pronounced in the Open Court  
(Vide separate Order)

**ORDER**

I.A.No.6 filed by the Judgment Debtor under section 75(b) and (g) R/w under order XXVI Rule 9 and 10(b) of CPC is rejected with cost of Rs.5,000/-.

Judgment Debtor is hereby directed forthwith to remove his belongings (as per inventory list) which were lying in the schedule premises.

For further steps.

Call on: 11.03.2025.

**LIX Addl. City Civil & Sessions Judge,  
BANGALORE.**